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AS AMENDED

By: Osburn of the House

Daniels of the Senate

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[ State Board of Education - appointments - removal
procedures - vacancies - effective date -
emergency ]
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BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 3-101, as amended by Section 1, Chapter 182, O.S.L. 2023 (70 O.S. Supp. 2025, Section 3-101), is amended to read as follows:

Section 3-101. A. The State Board of Education shall consist of ~~seven (7)~~ nine (9) members. The State Superintendent of Public Instruction shall be a member and the chairperson of the Board. ~~The remaining six members shall be appointed by the Governor by and with the advice and consent of the Senate. Except as otherwise provided for in subsection B of this section, upon assuming office each Governor shall appoint one member from each congressional district and one member from the state at large~~ Four members shall be appointed by the Governor, two members shall be appointed by the Speaker of the House of Representatives, and two members shall be

1 appointed by the President Pro Tempore of the Senate. Each
2 appointment shall be made to take effect on April 2. The term of
3 each appointed member shall be four (4) years. Appointed members
4 shall serve until a successor is appointed. Appointed members shall
5 ~~serve at the pleasure of the Governor~~ only be removed for cause by
6 their appointing authority. Upon the occurrence of a vacancy the
7 same shall be filled ~~by the Governor, subject to confirmation by the~~
8 ~~Senate at the next session of the Legislature~~ in the same manner as
9 the original appointment. The appointment to fill a vacancy shall
10 be made for the unexpired term.

11 B. On the effective date of this act, all appointed positions
12 of the current State Board of Education shall be deemed vacant and
13 the terms of persons serving on the Board shall be deemed
14 terminated. The Governor, the Speaker of the House of
15 Representatives, and the President Pro Tempore shall each make their
16 initial appointments pursuant to the provisions of this subsection
17 within thirty (30) days of the effective date of this act, ~~with one~~
18 ~~member appointed from each congressional district and one member~~
19 ~~appointed from the state at large.~~ The appointments shall be
20 ~~subject to confirmation by the Senate at the next session of the~~
21 ~~Legislature.~~ The terms for members appointed pursuant to this
22 subsection shall terminate on April 2, ~~2015~~ 2030. Thereafter,
23 members shall be appointed as provided for in subsection A of this
24 section.

1 C. No person shall be eligible to be appointed to serve on the
2 Board unless the person has been awarded a high school diploma or
3 certificate of high school equivalency. No person shall be
4 appointed to serve on the Board if the person serves on a board of
5 education of a school district which is supervised by the Board
6 pursuant to Section 3-104 of this title. Any member appointed to
7 the Board shall complete the workshop requirements of a new school
8 board member pursuant to Section 5-110 of this title within thirteen
9 (13) months following or preceding the appointment of the member.
10 Notwithstanding any provision of law to the contrary, the State
11 Department of Education shall not charge any member of the State
12 Board of Education a fee for any workshop provided by the Department
13 for board members pursuant to Section 5-110 of this title and shall
14 not pay a fee to any organization or institution of higher education
15 on behalf of a member of the State Board of Education, or reimburse
16 any member of the Board for a fee paid to any organization or
17 institution of higher education, for attendance at a workshop or
18 courses to satisfy the requirements of Section 5-110 of this title.

19 D. Members of the Board shall receive necessary traveling
20 expenses while in the performance of their duties in accordance with
21 the State Travel Reimbursement Act.

22 SECTION 2. This act shall become effective July 1, 2026.

23 SECTION 3. It being immediately necessary for the preservation
24 of the public peace, health or safety, an emergency is hereby

1 declared to exist, by reason whereof this act shall take effect and
2 be in full force from and after its passage and approval.

3 COMMITTEE REPORT BY: COMMITTEE ON RULES
4 April 23, 2026 - DO PASS AS AMENDED
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